

Andhra Pradesh Municipal Councils/Nagar Panchayats (Co-Option of Members Belonging to Minorities) Rules, 1995

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State of Andhra Pradesh - Act

Andhra Pradesh Municipal Councils/Nagar Panchayats (Co-Option of Members Belonging to Minorities) Rules, 1995

ANDHRA PRADESH

India

Andhra Pradesh Municipal Councils/Nagar Panchayats (Co-Option of Members Belonging to Minorities) Rules, 1995

Rule

ANDHRA-PRADESH-MUNICIPAL-COUNCILS-NAGAR-PANCHAYATS-CO-OPTION-OF-MEMBERS-BELONGING-TO-MINORITIES-RULES-1995 of 1995

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Andhra Pradesh Municipal Councils/Nagar Panchayats (Co-Option of Members Belonging to Minorities) Rules, 1995

In exercise of the powers conferred by sub-section (1) of Section 326 read with Clause (vi) of sub-section (2) of Section 5 of the Andhra Pradesh Municipalities Act, 1965 (Act

6 of 1965

), the Governor of Andhra Pradesh hereby makes the following rules

1.

Short Title.

(1)

These Rules may be called the Andhra Pradesh Municipal Councils/Nagar Panchayats (Co-option of Members belonging to Minorities) Rules, 1995.

(2)

These rules shall apply to all Municipal Councils and Nagar Panchayats in the State and any reference to a Municipal Council wherever it occurs in these rules shall apply to Nagar panchayats also.

(3)

These Rules shall come into force at once.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires--

(i)

"Act" means the Andhra Pradesh Municipalities Act, 1965;

(ii)

"Government" means the Government of Andhra Pradesh;

(iii)

"Minorities" means the communities as specified below which were notified as such by the Ministry of Welfare, Government of India in No. S.O. 816 (3), Dated 23-10-1993; and such other communities that may be notified by the Government of India from time to time.

(a)

Muslims

(b)

Christians

(c)

Sikhs

(d)

Budhists

(e)

Zerastrains (Parsis)

(2)

The words and expressions used but not defined in these rules shall have the meanings respectively assigned to them in the Act.

3.

Qualification.

(1)

The person to be co-opted shall be,--

(a)

A Registered voter in the Municipality; and

(b)

shall be not less than 21 years of age.

4.

Disqualification.

- The provisions contained in Sections 14 and 16 of the act with regard to disqualification of members shall mutatis mutandis apply to the co-opted members.

5.

(1)

The Chairperson shall convene a special meeting of the Council within sixty (60) days from the date of first meeting of the Council to be appointed by the Election Authority.

(2)

A notice of seven (7) clear days shall be given to the members including ex-officio members for convening the meeting.

(3)

No business shall be transacted at the meeting unless there be present atleast one-half of the sanctioned strength of the Council including ex-officio members:

Provided that where a minority member could not be co-opted in the first two meetings for want of quorum, the minority member shall be co-opted in the third meeting even without the quorum.

(4)

If within half-an-hour after the time appointed for the special meeting the quorum is not present, the meeting shall stand adjourned unless all the members present agree to wait longer.

6.

(1)

The Chairperson shall call for proposals for co-option of member belonging to minorities.

(2)

Any member including an ex-officio member can propose the name a member belonging to minorities and another member has to second such proposal.

(3)

If one person is proposed to be co-opted, he shall be declared to have been co-opted.

(4)

If two or more persons are proposed to be co-opted, one person shall co-opted by voice vote.

7.

While co-opting a member, preference may be given to the member belonging to such of the communities which are not represented on the council through direct election.

8.

The provision contained in Section 55 of the Act with regard to resignation of members shall mutatis mutandis apply to the co-opted member.

9.

A casual vacancy in the office of co-opted member shall be filled by following the procedure prescribed in these rules as soon as may be after occurrence of the vacancy:

Provided that no casual vacancy occurred within three months before the date on which the term of office the member expires shall be filled in; Provided further that a member co-opted by the council to a casual vacancy shall held office so long only as the member in whose place he is co-opted would have entitled to hold office if the vacancy had not occurred.

10.

The Chairperson of the meeting shall issue a notification prescribed in Form-I in the District Gazette indicating the name of person co-opted by the Council and the Commissioner shall thereafter send an attested copy of the notification to the District Collector, Commissioner and Director of Municipal Administration, Regional Director-cum-Appellate Commissioner and Government and he will also place a copy of it on the Notice Board of the Municipal Office.

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